

The Goa Panchayats (Gram Sabha Meetings) Rules, 1996

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State of Goa - Act

The Goa Panchayats (Gram Sabha Meetings) Rules, 1996

GOA

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The Goa Panchayats (Gram Sabha Meetings) Rules, 1996

Rule THE-GOA-PANCHAYATS-GRAM-SABHA-MEETINGS-RULES-1996 of 1996

Published on 14 November 1996

Commenced on 14 November 1996

[This is the version of this document from 14 November 1996.]

[Note: The original publication document is not available and this content could not be verified.]

The Goa Panchayats (Gram Sabha Meetings) Rules, 1996

Published vide Notification No. 3/DP/GRAMSABHA/MEET/96, dated 14-11-1996

3.

/DP/GRAMSABHA/MEET/96. - Whereas the draft of the Goa Panchayats (Gram Sabha Meetings) Rules, 1996, was published as required by sub-section (1) of section 240 of the Goa Panchayat Raj Act, 1994 (Goa Act 14 of 1994) at pages 531 to 532 of the Official Gazette, Series I No. 49, dated 7-3-1996, under Notification No. 20/6/DP/GRAM SABHA/MEET/RULES/96/263 dated 15-2-1996, of the Department of Community Development and Panchayats, inviting objections and suggestions from all persons likely to be affected thereby before the expiry of thirty days from the date of publication of the said Notification in the Official Gazette;

And Whereas the said Gazette was made available to the public on 7th March, 1996;

And Whereas objections/suggestions received from the public on the said draft have been considered by the

Government.

Now, Therefore, in exercise of the powers conferred by sub-section (1) of section 5 read with sub-section (1) of section 240 of the Goa Panchayat Raj Act, 1994 (Goa Act 14 of 1994), the Government of Goa hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Goa Panchayats (Gram Sabha Meetings) Rules, 1996.

(2)

They shall come into force at once.

2.

Definition.

- In these Rules, unless the context otherwise requires,-

(a)

"Act" means the Goa Panchayat Raj Act, 1994 (Goa Act 14 of 1994);

(b)

words used but not defined shall have the same meanings as assigned to them in the Act.

3. Place of meeting.

- The meeting of the Gram Sabha shall ordinarily be held in the office of the Panchayat or at any other convenient public place accessible to all the villagers as may be determined by the Sarpanch or in his absence, by the Deputy Sarpanch.

4.

Date of meeting of Gram Sabha.

- The first meeting of the Gram Sabha shall be held on the first Sunday of the month of May and the second meeting shall be held on the first Sunday of the month of November, of every year.

5.

Time of meeting.

- The first and second meeting of the Gram Sabha shall be held at 11.00 hrs.

6.

Extraordinary meeting.

- The Sarpanch may, at any time, of his own motion or shall, if so required by one-fifth number of members as provided under sub-section (1) of section 5 of the Act or by the Block Development Officer or the Director, call an extraordinary general meeting of the Gram Sabha.

7.

Notice of the ordinary and extraordinary meeting.

- The notice of an ordinary meeting of the Gram Sabha shall be given at least seven clear days before the date of such meeting and in the case of an extraordinary meeting, at least four days before the date of such meeting.

8.

Mode of publication of notice of meeting.

- A notice of the meeting, either ordinary or extraordinary, of the Gram Sabha shall be published;

(a)

by affixing it at the office of the Panchayat and at any other conspicuous public place or places in the village, and

(b)

by publishing it in anyone local newspaper which is widely circulated in the village.

9.

Contents of the notice.

- The notice of a meeting of the Gram Sabha shall specify the date, time and place of the meeting and the nature of the business to be transacted at the meeting. The business to be transacted at the meeting shall include items as specified in sub-section (1) of section 6 of the Act.

10.

Mode of placing proposals.

(1)

Any proposal, which a person desires to place before a meeting of the Gram Sabha may be sent by him to the Sarpanch or in his absence to the Deputy Sarpanch atleast four days before the date of the meeting. The Sarpanch or in his absence the Deputy Sarpanch shall decide whether any such proposal received before or after the publication of the notice should be placed before the meeting of the Gram Sabha or not. The Sarpanch or in his absence the Deputy Sarpanch may disallow any such proposal on any of the following grounds namely:-

- (i)
If the proposal is of defamatory character;
- (ii)
If the language used in the proposal is offensive;
- (iii)
If the proposal is of trivial nature;
- (iv)
If the proposal is against public interest;
- (v)
If the proposal is in respect of matter which is sub-judice.

(2)
If the proposal to be placed before the meeting of the Gram Sabha is to be disallowed on any other ground, the Sarpanch or in his absence the Deputy Sarpanch shall raise the matter before the Panchayat and the decision of the Panchayat in the matter shall be final.

11.

Consideration of proposal by Panchayat.

- A meeting of the Panchayat shall be held on the day immediately preceding the date fixed for the meeting of the Gram Sabha to consider the proposal scheduled to come up before the meeting of the Gram Sabha.

12.

Business of the meeting.

(1)

The minutes of the previous meeting shall be read at each meeting and shall be confirmed and signed by the person presiding at the meeting.

(2)

Except with the permission of the person presiding at the meeting:-

(a)

no business, which is not included in the notice, shall be transacted at any meeting;

(b)

the business to be transacted at a meeting shall ordinarily be taken in the order in which it is entered in the notice.

(3)

If the business of a meeting is left undisposed, the person presiding at the meeting may, with the consent of the persons present, adjourn the meeting to a subsequent date, time and place to be announced in the meeting. No other fresh business shall be transacted at such adjourned meeting.

13.

Persons presiding may disallow discussion of proposition beyond the competence.

- The person presiding at the meeting may disallow the discussion of any proposition which he considers to be beyond the competence of the Gram Sabha and in doing so, he shall record his reasons in writing.

14.

Discussion of proposition and decision on point of order.

- All propositions, not disallowed by the person presiding at the meeting, shall be discussed at the meeting of the Gram Sabha. The person presiding at the meeting shall decide all points of order arising during the course of the meeting and his decision thereon shall be final.

15.

Duty of the person presiding to preserve order.

- It shall be duty of the person presiding at the meeting to regulate the transaction of business at the meeting and to preserve order, and for this purpose he shall have all the necessary powers.

16.

Power of person presiding to cause withdrawal of member for obstructive conduct.

- If any member disregards the authority of the person presiding at the meeting or is guilty of obstructive or offensive conduct in a meeting or interrupts the proceedings of a meeting, the person presiding at the meeting shall have the power to cause withdrawal of such person from the meeting by seeking police assistance or by any other assistance which may be necessary for removal of such person or persons.

17.

Record of proceedings.

- A brief record of the proceedings of every meeting of the Gram Sabha shall be kept in any of the following languages, namely, Hindi, English, Konkani and Marathi, in a bound book and copy of the proceedings shall be sent to the Director of Panchayats within seven days from the date of the meeting.

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